

An Act

ENROLLED SENATE
BILL NO. 1365

By: Frix of the Senate

and

Townley of the House

An Act relating to the Oklahoma Central Purchasing Act; amending 74 O.S. 2021, Section 85.3A, as amended by Section 53, Chapter 228, O.S.L. 2022 (74 O.S. Supp. 2025, Section 85.3A), which relates to exempted entities; updating statutory language; adding certain exemption; exempting certain purchases made by the Oklahoma Tourism and Recreation Department from the Oklahoma Central Purchasing Act; exceeding certain amount; construing provisions; and providing for codification.

SUBJECT: Competitive bidding exemptions

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 85.3A, as amended by Section 53, Chapter 228, O.S.L. 2022 (74 O.S. Supp. 2025, Section 85.3A), is amended to read as follows:

Section 85.3A. A. Compliance with the provisions of the Oklahoma Central Purchasing Act shall not be required of:

1. County government;

2. The Oklahoma State Regents for Higher Education, the institutions, centers or other constituent agencies of The Oklahoma State System of Higher Education;

3. The telecommunications network known as OneNet;

4. The Department of Public Safety gun range;

5. The State Treasurer for the following purchases:

- a. services including, but not limited to, legal services to assist in the administration of the Uniform Unclaimed Property Act, as provided in Section 668 of Title 60 of the Oklahoma Statutes, and
- b. software, hardware and associated services to assist in the administration of funds and securities held by the state, as provided in Section 71.2 of Title 62 of the Oklahoma Statutes;

6. Statutorily allowed interagency agreements between state agencies;

7. The Oklahoma Department of Veterans Affairs, in accordance with Section 63.22 of Title 72 of the Oklahoma Statutes;

8. ~~The Oklahoma~~ Military Department of the State of Oklahoma for the purchases of heraldry items including, but limited to, medals, badges and other military accoutrements;

9. A transaction, wholly funded by monies other than state-derived funds, in which a state agency functions only as a pass-through conduit to fund an acquisition that is required by the funding source for the benefit of another entity or individuals and the state agency does not retain ownership of any part of the acquisition as a result of the transaction; ~~or~~

10. The Secretary of State when selecting a vendor for publication of the Oklahoma Statutes in accordance with Section 13 of Title 75 of the Oklahoma Statutes; or

11. The Oklahoma Tourism and Recreation Department for purchases set forth in Section 2 of this act.

B. The State Purchasing Director may form an advisory committee consisting of representatives from entities exempted from the provisions of the Oklahoma Central Purchasing Act. The purpose of

the committee shall be to allow committee members to provide input into the development of shared state purchasing contracts, collaboratively participate in the integration of their purchasing platforms or electronic purchasing catalogs, analyze solutions that may be used by state government to meet the purchasing needs of the entities, explore joint purchases of general use items that result in mutual procurement of quality goods and services at the lowest reasonable cost and explore flexibility, administrative relief and transformation changes through utilization of procurement technology.

C. At the invitation of the State Purchasing Director, entities exempted from the provisions of the Oklahoma Central Purchasing Act shall participate in the advisory committee referenced in subsection B of this section.

D. The State Purchasing Director may invite representatives of political subdivisions, and local common education entities to participate as members of the advisory committee.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2211.1 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Tourism and Recreation Department shall be exempt from the Oklahoma Central Purchasing Act for purchases in an amount not to exceed Seventy-five Thousand Dollars (\$75,000.00) related to merchandise for resale purchased for and sold over the Internet, in publications, or through Department retail outlets including, but not limited to, lodges, gift shops, golf course pro shops, restaurants, and other purchases made for the production of such merchandise.

B. An exemption authorized in this section shall not be construed for the use of leasing or contracting for state-owned restaurants in state parks.

Passed the Senate the 25th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____